
Marco Rubio's quest to destroy the International Criminal Court

Published by

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Estimated reading time

6 min

Added on

2026-07-20

Address

<https://www.salon.com/2026/07/19/marco-rubios-quest-to-destroy-the-international-criminal-court/>

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For a man who considers himself the greatest builder the world has ever known — [move over, Pharaoh Khufu!](#) — Donald Trump has managed vanishingly little of it in either of his presidential terms. What his administrations have done is show an impressive talent for [tearing things down](#).

From the [East Wing of the White House](#) to the United States Agency for International Development (USAID) and public health, Trump has demonstrated a clear aptitude for demolition. Among his most successful accomplishments has been his assault on the international institutions that were created in response to the worst catastrophes of the 20th century.

During his first campaign and administration, Trump constantly attacked NATO, the military and political alliance formed in 1949 in response to Soviet aggression that operates on the principle of collective security. He also withdrew from the Paris Climate Accords and ripped up the Iran nuclear agreement, cornerstones of Barack Obama's foreign policy. But Trump [didn't stop there](#). He withdrew from the United Nations Framework Convention on Climate Change, the Intermediate-Range Nuclear Forces Treaty, the World Health Organization, UNESCO, the Trans-Pacific Partnership and the U.N. Human Rights Council. Since he returned to office in January 2025, he has continued to attacks on NATO and signed an executive order withdrawing from 66 additional international organizations.

To be fair, Republicans have never really trusted international institutions. This tendency stretches back at least a century to the League of Nations. While the GOP has tended to back alliances like NATO, which they felt they could control, the party has been deeply suspicious of organizations like the United Nations, which they believe threaten national sovereignty — and impede America's ability to act with impunity anywhere in the world. Since 1998, this has especially included the International Criminal Court, which is now coming under assault by Secretary of State Marco Rubio on behalf of the Trump administration.

Since its creation, the I.C.C. has been the bete noir of the American right. At first glance, one might have thought such an organization would have been championed by the U.S. After all, the country pioneered the idea of such a tribunal after World War II when it ran the Nuremberg trials to hold Nazi leaders accountable for crimes against humanity, while also pointedly declaring that waging a war of aggression is "[the supreme international crime](#)," containing within itself "the accumulated evil of the whole." The idea of holding individuals responsible for such violations was forged in that process and became the basis of international criminal law.

In 1998, the [Rome Statute of the International Criminal Court](#) was adopted and established four crimes over which it could take jurisdiction if the party state refused use its own legal system: genocide, crimes against humanity, war crimes and the crime of aggression. The statute was immediately decried by Republicans (and some conservative Democrats) as a threat to U.S. sovereignty on the basis that Americans could be subject to political prosecutions. But that wasn't all of the story. It's clear they also wanted to maintain the impunity conferred by America's superpower status.

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One hundred twenty-five countries are parties to the agreement. The U.S., under Bill Clinton, was a signatory to the treaty, but it was never ratified, and in 2002 it was officially withdrawn by George W. Bush. Israel, Sudan, Burundi, the Philippines and Russia have also withdrawn. 29 countries have signed but not ratified the agreement, while 41 others, including China and India, have neither signed nor acceded to it.

Since then, the I.C.C. has tried war criminals and has a number of active cases, although few leaders have [faced charges while in office](#). In November 2024, Israel Prime Minister Benjamin Netanyahu became an exception for his conduct in Israel's war against Gaza following the attacks by Hamas on Oct. 7, 2023, joining the likes of Russian President Vladimir Putin and former Sudanese President Omar Hassan al-Bashir.

Even after Bush withdrew from the treaty, it was assumed the I.C.C. could grow its legitimacy among the holdouts — including the U.S., which has [used the body itself](#) when it was advantageous. But that is not to be.

Project 2025, the plan for a MAGA overhaul of the entire federal government produced by the right-wing Heritage Foundation, [explicitly demanded](#) that the U.S. to “must end blind support for international organizations,” only using them to the extent that they help the country achieve its own goals regardless of the effect on other nations.

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Now, in his quest to be the frontrunner for the 2028 Republican presidential nomination, Rubio has launched a full-blown assault on the I.C.C. with the support of Trump. The move is part of a variety of crusades the secretary is leading to establish his MAGA bona fides, and comes in addition to his international “far left terrorist crusade,” which I [recently chronicled](#). Not content just to refuse to participate in the process and pledge to rely on our own justice system, as Republicans have done in the past, Rubio wants the I.C.C. destroyed completely.

The administration has already [sanctioned](#) eight of the court's judges, including its chief prosecutor, banning their travel to the U.S. On July 13, Rubio took to the pages of the Wall Street Journal to [declare](#) that the I.C.C. “threatens every aspect of our political and legal system.” Using the usual sophomoric language of the MAGA movement, such as referring to “smug globalists,” he declared that the U.S. will now lead a “diplomatic campaign” against the Court, which will include penalties on countries that continue to cooperate with it, including by withdrawing foreign assistance. This is a tried and true Trump tactic that the president has even deployed on the home front against blue states that disagree with him. Now, it looks like the GOP establishment, of which Rubio has long been a representative, has signed on to the president's mob-like coercion tactics against all rivals foreign and domestic.

According to Stewart Patrick of the Carnegie Endowment for Peace, the administration's [goal](#) is to destroy multilateralism altogether using what he called “four basic behaviors: defection, rebellion, substitution, and conditional cooperation.” Trump has quit some institutions, attempted to sabotage others and even tried to establish his own, such as the “Board of Peace” and the “Shield of the Americas,” both of which the administration believes it can dominate — and no doubt profit from. It has reengaged with others, such as the World Bank and the G20, but on a conditional basis: They are expected to do as they are told. But, as Patrick observed, “the administration's campaign to

dismantle the ICC is a campaign of pure destruction, a coercive attempt to impose the United States's will on the rest of the world.”

The world has reacted in horror to Rubio's moves, as we might expect. Patrick wrote, “Given the voluble reaction from America's closest allies, the full-bore attempt by the administration to destroy the ICC would seem to be both imprudent and futile, an effort in symbolic politics that will further cement the reputation of the United States as an unhinged, domineering hegemon, rather than a benevolent and farsighted global leader.”

I'm afraid that ship has sailed.

This policy is Marco Rubio's baby. He owns it. The secretary has established himself as the would-be statesman who took Donald Trump's wrecking ball and made it his own. In doing so, his remake of himself in the Dear Leader's image is complete.

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